

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/03/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-06946
CASE NAME: CITIBANK, N.A. VS. TATIYANA MINNIKOFF
*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION
FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's attorney.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called judgment to be entered in a specified amount, plus costs, less any credits for payments received.

Costs are listed as \$314, for court expenses.

The Stipulated Agreement was filed 12/15/25.

The balance, including costs and payments made by the Defendant, is \$2,257.28.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file Order.

2. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

***HEARING ON MOTION IN RE:**

FILED BY:

***TENTATIVE RULING**

Background

Plaintiff filed a Motion, on 1/2/26, apparently for the purpose of setting aside the court's order, filed on 5/14/25, setting aside the Entry of Default against the Defendant. This is the stated purpose in the caption of Plaintiff's motion.

However, the body of Plaintiff's motion is largely incoherent.

There are only two references to any legal authority that seem to have any bearing on the purpose of this Motion, and those are to Sections 472 and 1008 of the Code of Civil Procedure.

The court's order from 5/14/25, set aside the Entry of Default after finding that Defendant didn't understand that the instant matter was a separate legal matter – that required separate responses from the Defendant - from the small claims matter that involved the same two parties, and largely the same issues, and which had already been resolved in favor of the Defendant.

Analysis

To the extent that Plaintiff is arguing that Section 473(b) of the Code of Civil Procedure should compel this court to set aside the 5/14/25 Order, he offers no explanation of how his mistake, inadvertence, surprise, or excusable neglect played any role in the court's decision to set aside the Entry of Default. And Plaintiff's failure to offer an explanation notwithstanding, this court doesn't believe there would be such an excuse for the 5/14/25 Order, an order which involved analysis of whether *Defendant* had a proper excuse for failing to provide a timely Answer to Plaintiff's Complaint. Nothing in that Order hinged at all on any action or failure to act by the Plaintiff, so it is unclear how his mistake or inadvertence could have led to a different outcome.

And any claim under CCP Section 1008, which governs a party's ability to request that a court reconsider its own ruling, is untimely. Section 1008 requires that the moving submit their request for reconsideration within 10 days after written notice of entry of the order at issue. In the instant matter, an Order was filed on 10/21/25, that explicitly referenced the court's order, on 5/14/25, to Set Aside the Entry of Default. The 10/21/25 Order was mailed by the Court Clerk's Office to the Plaintiff, on 10/21/25, the address for Plaintiff that he listed on his most recent court filing, which was

filed 10/20/25. Plaintiff did not file this Motion until 1/2/26, which is well beyond the statutory time limit.

Even assuming the request was timely made, Section 1008 requires that the moving party appeal to new or different facts, circumstances, or law, that were not already apparent at the time the underlying order was made. Plaintiff does not present anything in coherent form that satisfies this requirement.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order.

3. 9:00 AM CASE NUMBER: L24-08578
CASE NAME: WESTLAKE SERVICES LLC DBA WESTLAKE FINANCIAL SERVICES VS. TANeka HARDY
***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF ON 12/5/25**
FILED BY: HARDY, TANeka S
TENTATIVE RULING:

Background

Attorney for Defendant filed a Motion to be relieved as counsel, but the attorney has provided no declaration, or any reason for the request. There is also no proof that Defendant was served with this request.

Disposition

This motion will be continued to 5/26/26, 9am, for Defendant's attorney to provide a declaration as well as notice to Defendant.

Counsel for Defendant to file Order.

4. 9:00 AM CASE NUMBER: L25-00290
CASE NAME: CITIBANK, N.A. VS. RAPHAEL UZOMA
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**
FILED BY: CITIBANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

It is the Plaintiff's burden to prove that Defendant received adequate notice of this motion.

Plaintiff mailed notice of motion and the motion to a Pittsburg address for Defendant. But this address is not on any court filings, and Plaintiff has never personally served Defendant at this address.

The parties entered into a CCP 664.6 agreement, signed by Defendant on 5/14/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called judgment to be entered in a specified amount, plus costs, less any credits for payments received.

Costs are listed as \$296.02, for court expenses.

The Stipulated Agreement was filed 12/15/25.

The balance, including costs and payments made by the Defendant, is \$2,810.55.

Disposition

The court finds that the Defendant was not properly served.

Plaintiff's Motion will be continued to 6/2/26, for Plaintiff to properly notice Defendant.

Plaintiff to file Order.

5. 9:00 AM CASE NUMBER: L25-01583
CASE NAME: WELLS FARGO BANK, N.A. VS. SANDRA TAYLOR
***HEARING ON MOTION IN RE: SUMMARY JUDGMENT**
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment. Plaintiff also submitted a document captioned, "Plaintiff's Evidence Submitted ISO MSJ," which consists of 2 exhibits that, in total, exceed 500 pages. There is no consistent pagination for Exhibit B, which consists of at least 500 pages on its own.

Plaintiff makes a number of references to these exhibits in their Separate Statement of Undisputed Facts, as well as their Declaration, yet doesn't attempt to identify any particular page range of either exhibit.

Analysis

This court will not attempt to wade through more than 500 pages of exhibits to find the page or pages that Plaintiff is referencing. And these exhibits appear to the court to be necessary to Plaintiff's

Motion.

Disposition

This motion will be continued to 6/2/26, 9am, for Plaintiff to provide page numbers to their exhibits, as well as to reference particular pages or narrow page ranges in any of their documents that accompany their motion.

Plaintiff to file Order and notify Defendant.

6. 9:00 AM CASE NUMBER: L25-05034

CASE NAME: DISCOVER BANK VS. JILL TRICE

***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Set Aside the Judgment and dismiss the matter without prejudice. The Motion was served on Defendant and is unopposed.

Analysis

Plaintiff alludes to an investigation and invokes the interests of justice but doesn't explain the reason for the dismissal request. However, since the Motion is unopposed and there is certainly no prejudice to the Defendant in granting the Motion, the court will grant.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-07554

CASE NAME: WELLS FARGO BANK, N.A. VS. NICK LINDQUIST

***HEARING ON MOTION IN RE: MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN REQ FOR ADM AS ADMITTED FILED BY PLN ON 11/17/25**

FILED BY: WELLS FARGO BANK, N.A.

***TENTATIVE RULING**

Plaintiff has filed a Motion for an Order Deeming the Truth of the Matters Specified as Admitted.

But the parties have submitted a stipulation, filed 2/13/26, calling for dismissal of the action and for the court to retain jurisdiction.

Disposition

This Motion is moot and will be dismissed.

Court to vacate this matter from calendar.

8. 9:00 AM CASE NUMBER: MSL19-02010

CASE NAME: CAPITAL ONE VS OECHSLI

***HEARING ON MOTION IN RE: TO SET ASIDE CCP 664.6 DISMISSAL AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE BANK (USA), N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's counsel, the same address included in the parties' signed agreement, under Section 664.4, filed 1/3/24. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,360.33, plus costs of \$295, less any credits for payments received.

The Defendant made payments of \$478.

A dismissal was entered on 11/13/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,177.33.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: N26-0035
CASE NAME: PETITION OF: KRYSTLE SALAZAR
HEARING IN RE:
FILED BY:
TENTATIVE RULING:

Background

Petitioner has petitioned the court for declaratory relief under Section 1060 of the Code of Civil Procedure.

Petitioner alleges that she purchased a vehicle from a vendor in Washington State, but that the DMV in California requires a declaration from the court that Petitioner is in fact the owner.

The vendor, CoPart, is not listed as a Defendant. The DMV is listed as a defendant.

Analysis

Section 1060 of the CCP requires that there be an active controversy between the two parties involved in the suit. But there is no controversy with the DMV; rather, the controversy, if any exists, is with the vendor, CoPart.

Further, the evidence Petitioner provides, bills of sale, show that David Salazar Gonzalez, is the purchaser, and not the Petitioner. It doesn't appear that Petitioner has standing to sue.

Disposition

This Petition will be continued to 6/9/26, and the court will grant Petitioner leave to amend the Petition and identify the correct Petitioner and Defendant.

Petitioner must also serve Defendant with notice of this suit.

Petitioner to file the Order.